

BOPU RESOLUTION NO. 2011- _____

ENTITLED: "A RESOLUTION ADOPTING REVISED WATER RATES TO BE CHARGED TO USERS OF THE CHEYENNE WATER SYSTEM."

WHEREAS, the Board of Public Utilities (Board) is authorized by State Statute and City Code to set rates, fees and penalties for water and sanitary sewer services furnished to customers; and

- (a) Pay for operation and maintenance of the water system, including salaries, wages and benefits, and the cost of all materials and supplies necessary for repairs, replacements and upgrades to the system; and
- (b) Pay interest charges and principal payments on all outstanding water loans and bonds as they are due; and
- (c) Cover all miscellaneous expenses; and
- (d) Cover all usual extensions and enlargements, together with a reasonable allowance for emergency and unforeseen expenses; and
- (e) Provide and maintain a depreciation fund for the water department; and

WHEREAS, the Board has determined that an increase in the water rates is necessary to ensure adequate revenue is generated in order to pay for costs associated with those services rendered; and

WHEREAS, the Governing Body of the City of Cheyenne, pursuant to Ordinance 3893, adopted June 14, 2010, requires that prior to the beginning of each fiscal year, the Board will calculate new Water rates, service charges, penalties and miscellaneous charges based on the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance and the Wyoming Cost Living Index – Southeast Region and prepare a new Water fee schedule; and

WHEREAS, the Bureau of Labor Statistics, Consumer Price Index, All Urban Consumers, Water and Sewer Maintenance for the calendar year 2010 was 6.75% and the Wyoming Cost Living Index – Southeast Region for the fourth quarter of 2010 was 3.2%; and

NOW THEREFORE BE IT RESOLVED that the following Water Rate Schedule is adopted by the Board, and that it be presented in the form of an ordinance to the Governing Body of the City of Cheyenne for approval, to become effective on consumption and bills issued on or after the dates noted below on the water rate schedule:

WATER RATE SCHEDULE

Effective with metered consumption after November 01, 2011 on bills issued on or after the date indicated:

<u>Meter Size</u>	<u>January 1, 2012 Monthly Service Fee</u>	<u>January 1, 2011 Monthly Service Fee</u>
5/8 In. & 3/4 In.	\$ 4.95	\$ 4.80
1 In.	6.30	6.10
1 1/4 In. & 1 1/2 In.	10.00	9.71
2 In.	12.45	12.09
3 In.	48.45	47.04
4 In.	57.70	55.99
6 In.	75.00	72.79
8 In.	98.05	95.17
10 In.	126.90	123.14
12 In.	168.30	163.37

Service Fee: The monthly service fee is charged in addition to the charge per 1,000 gallons. This service fee is based upon the size of the water meter. The monthly service fee for outside city users will be 1.5 times the above rates.

	<u>January 1, 2012 Volume Rate Charge Per 1,000 Gallons</u>	<u>January 1, 2011 Volume Rate Charge Per 1,000 Gallons</u>
Residential Single Family Structure (in-city)		
First Block First 6,000	\$ 3.56	\$3.46
Second Block Next 18,000	4.42	4.29
Third Block Next 18,000	5.48	5.32
All Over 42,000	6.81	6.61
Residential Multifamily Structure (in-city)		
First Block First 3,000 per unit	\$3.56	\$3.46
Second Block Next 9,000 per unit	4.42	4.29
Third Block Next 9,000 per unit	5.48	5.32
All Over 21,000 per unit	6.81	6.61

Exhibit A

Commercial / Industrial	\$4.10	\$3.98
South Cheyenne Water & Sewer District	4.10	3.98
F.E. WAFB	4.10	3.98
Large volume Industrial / Commercial	3.90	3.78
Irrigation - Treated Water	4.42	4.29
Irrigation - Raw Water including WAFB	2.31	2.24
Reclaimed Water	1.87	1.82
Recycled Water	3.34	3.24

* The volume rate charge for all outside city customers will be 1.5 times the above rates.

Multifamily residential unit: Defined as a residential building with two or more, separate and distinct, residences (for example duplex, triplex, four-plex, etc.) where water to the building is measured through a single meter.

Large Volume Industrial User: Defined as a user whose treated water demand is equal to or exceeds 1 million gallons a day (mgd) and whose demand upon the treated water system is constant on a day-to-day basis.

Raw water: Defined as surface water, which is not treated by the Board’s water treatment plants.

Reclaimed water: Defined as water released from the Board’s wastewater treatment plants or water released from the water treatment plant that is not recycled.

Recycled water: Defined as water released from the Board’s water reclamation plant that has also received tertiary treatment.

BE IT FURTHER RESOLVED that the following rates be charged for the purpose of mineral exploration in Laramie County and other portions of Southeast Wyoming:

	January 1, 2012	July 1, 2011
	Volume Rate Charge	Volume Rate Charge
	<u>Per 1,000 Gallons</u>	<u>Per 1,000 Gallons</u>
Oil – Treated Water	\$10.22	\$9.92
Oil – Recycled Water	7.67	7.44
Oil – Raw Water	5.35	5.20
Oil – Reclaimed Water	5.35	5.20

BE IT FURTHER RESOLVED that the Board is authorized to negotiate contracts with water system users, based upon the above rates and any revision of the above rates shall be subject to Governing Body review, modification and approval.

BE IT FURTHER RESOLVED that the Board is authorized to negotiate contracts and rates with commercial and/or industrial users, whose demand exceeds 500,000 gallons per day for the sale of raw water and/or reclaimed water. Said contracts and rates shall be subject to Governing Body approval.

BE IT FURTHER RESOLVED that the fees established by the Board be submitted to the Governing Body of the City of Cheyenne for approval and filing as provided by the Code of the City of Cheyenne, Wyoming

ADOPTED this 4th day of May, 2011.

BOARD OF PUBLIC UTILITIES
BY:

Gary Carver, President

(SEAL)

ATTEST:

David Evans, Secretary